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Senate of Virginia Floor Session, Thursday, January 29, 2026

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[00:29:43] Senate will come to order the senators will please take their seats those persons not entitled to the privileges of the floor will retire to the gallery the senators and all in attendance will please stand if you are able we will be led in prayer today by the Reverend Gina Anderson Cloud from Florist United Methodist Church in Herndon and following the prayer everyone will please remain standing and be led in the Pledge of Allegiance to the flag of the United States of America by Senate page Caroline Shoemaker of Williamsburg.

[00:30:19] Let us pray. Holy God creator of all as we stand today here in Richmond for the work of this body, the Senate of the Commonwealth, we ask that you remind us of our heritage, a heritage that was a genesis point for the work of democracy in this nation, as well as a heritage that unfortunately is marked on the banks of the James River by the lives of those who were enslaved, brought not as

[00:30:55] immigrants but for the service of the emerging democracy, which was penned as a a place of liberty, justice, and the pursuit of happiness for all, an aspirational vision not meant initially for all your people to benefit from lives blessed with equity and the embrace of true, beloved inclusion, whether immigrant, native, or slave.

[00:31:24] Today, help leaders gathered here, elected for the work of governing, keep in vision of future that you might desire for all as we keep the past always in view. Help the servants here work toward a present and future that acknowledges that for some in our state it remains difficult to pursue happiness and live a reality of justice and liberty for all. As division and bloodshed mark our nation

[00:31:59] in these times, remind us of our kinship in you. And in that aspirational vision of democracy, in its most complete formation, a government by and for all people, regardless of our roots, ethnicity, creed, race, sexuality, identity, or any markings of status.

[00:32:26] And all the work here, remind the elected officials and our state servants that you You are sovereign over all and that your grace is meant to abound in the hills of the former coal rich region of Appalachia with the same equity as in the streets of Hopewell and Hanover and Hampton.

[00:32:49] And the reach of that equity also is without limit extending equally to the farmlands of the Shenandoah and the borders we have of North Carolina as well as the burdening city centers of Virginia Beach and Alexandria of Fairfax and Arlington and your holiness guide this body to be instruments of your goodness and agents of ensuring justice liberty and the gifts that are held deeply in this great Commonwealth the land here for the mountains to the seashores without

[00:33:28] prejudice we pray all this in concert with your mighty and holy name amen i pledge allegiance to the flag of the united states of america and to the republic for which it stands one nation

[00:33:51] under god indivisible with liberty and justice for all the clerk will call the role all those

[00:34:25] present vote aye the clerk will close the role you have a quorum madam president senate journal for Wednesday, January 28, 2026.

[00:34:41] The senator from Washington moves that the reading of the journal be waived. All in favor of waiving the reading of the journal will record their vote aye. Those opposed no, are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote?

[00:35:00] The clerk will close the roll. Ayes 34, no 6. Ayes 34, no 6. The reading of the journal is waived. The clerk will report any communications from the House of Delegates. The chair recognizes the senator from Eastern Fairfax.

[00:35:23] Good afternoon, Madam President. Good afternoon. Madam President, I move to waive reading of the communication from the House of Delegates. The question is, shall the reading of the communication be waived? All in favor of waiving the reading of the communication from the House of Delegates will record their votes.

[00:35:39] Aye. Those opposed. No. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 34, noes 6.

[00:35:54] Ayes 34, noes 6. The reading of the communications is waived. The clerk will report any communications from the governor. I do not have any, Madam President. The chair recognizes the senator from Eastern Fairfax.

[00:36:17] Madam President, I move that we suspend the rules and grant the privileges of the floor to a certain distinguished person. The question is, shall the rules be suspended and the privileges of the floor granted to a distinguished person? All in favor of the motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote?

[00:36:44] The clerk will close the roll. Ayes 37, noes 0. Ayes 37, noes 0. The rules are suspended and the Privileges of the floor are granted the chair recognizes the senator from Tazewell for the purpose of presenting the distinguished guest Today it is my great privilege to recognize one of Virginia's finest a Hall of Famer a champion a standard bearer for excellence

[00:37:20] Mr. Billy Wagner a Virginian whose life reflects a particular kind of excellence, one that does not ask for attention, does not demand recognition, and does not require applause. Billy Wagner's journey is the very definition of the American dream and the Virginia spirit.

[00:37:41] Long before professional stadiums and national broadcast, he stood on a mound in the Cape Cod League facing the best college hitters in the country. In a moment that has since become quite legend, a disagreement arose between the pitcher and the catcher he waved the signs off and began calling his own pitches from the mound flashing them with his glove the hitters knew what was coming and it didn't matter preparation not surprise decided the outcome that same composure defined his college career during his first no

[00:38:20] hitter with the final inning underway in history within reach the bases were loaded no mound visit no delay nine pitches followed three strikeouts pressure did not undo him it revealed him away from the field there was nothing glamorous about the work he held a job at the college library when paychecks came they were cast into one dollar bills not as a novelty but as a reminder that progress is built increment by increment not overnight and not for show that humility carried

[00:38:58] forth across the Commonwealth support has been given quietly to nonprofits youth programs athletic teams often without a name attached and never with conditions boys teams girls teams rural

programs urban ones the measure was always effort and commitment not visibility just as importantly he made decision that defines his legacy as clearly as any statistic at the height Out of his career, while still among the best in the game, he chose to walk away.

[00:39:32] Not because the work was finished, but because something else mattered. A devoted husband, father, friend, and godfather, he turned his full attention to the people who had supported him long before the spotlight arrived. It was a choice rooted in clarity, not sacrifice.

[00:39:50] With a fastball that humbled the best hitters in the world, Billy Wagner became one of the greatest relief pitchers in baseball history, earning seven All-Star selections, over 400 career saves, and now his rightful place in the National Baseball Hall of Fame.

[00:40:09] Today, we honor more than statistics. We honor a man who represents hard work over hype, character over celebrity, roots over ego, and Virginia pride over personal glory. Billy Wagner never forgot where he came from, and Virginia never forgot him.

[00:40:28] The young people across our Commonwealth, his life sends a powerful message. If you're willing to work harder, push farther and stay humble, greatness is possible no matter where you start. And to the people of Southwest Virginia, especially the young athletes who look up to him, Billy Wagner stands as proof that world-class achievement can arise from small towns, strong families, and unbreakable determination.

[00:40:55] On behalf of the Senate of Virginia, it is an honor to present this resolution, commending Billy Wagner for his extraordinary career, his lasting impact on the game of baseball, and his continued representation of the very best of the Commonwealth.

[00:41:11] So I would ask the clerk to read the resolution. Senate Joint Resolution No. 323, commending Billy Wagner. Whereas Billy Wagner is a Virginia legend through and through, A native of Marion who grew up in Tannersville in Tazewell County, who built a reputation as one of the greatest closers in the history of Major League Baseball over his 16-year professional career.

[00:41:37] And whereas Billy Wagner was selected for induction into the National Baseball Hall of Fame by the Baseball Writers Association of America in 2025. And whereas born a natural right-hander, Billy Wagner showed extraordinary determination resolve from a young age as he overcame two breaks in his right arm by learning to throw with his left arm. Despite this setback, he would go on to achieve exceptional power as a pitcher with the ability to throw a hundred miles per hour throughout his career. And whereas Billy Wagner was a standout on the

[00:42:12] Tazewell High School team and played from 1991 to 1993 at Farum College where he posted a 17-3 record and achieved an NCAA record when he averaged 19.1 strikeouts per nine innings in the 1992 season. And whereas Billy Wagner was drafted 12th overall by the Houston Astros in 1993 and made his major league debut on September 13, 1995, he would ultimately record 225 saves while pitching with the Houston Astros between 1995 and 2003 a

[00:42:52] franchise record and whereas after the Houston Astros Billy Wagner pitched for the Philadelphia Phillies from 2004 to 2005 the New York Mets from 2006 to 2009 the Boston Red Sox in 2009 and the Atlanta Braves in 2010 and whereas Billy Wagner's cumulative statistics at the end of his career included a two point three one earned run average 1,196 strikeouts and 422 saves which placed

[00:43:28] him eighth all-time in Major League Baseball history for saves and whereas several of Billy Wagner's career statistics including an opponent's batting average of 0.187, 11.92 strikeouts per nine innings, and 5.99 hits per nine innings, rank him first all-time among pitchers who threw at least 900 innings. And whereas Billy Wagner's baseball accolades include seven all-star team selections and the Rolaids Relief Man Award in

[00:44:02] 1999. And whereas prior to his induction into the National Baseball Hall of Fame, Billy Wagner was inducted into the Ferrum College Sports Hall of Fame in 2003, the Virginia Sports Hall of Fame in 2012, the College Baseball Hall of Fame in 2019, and the Astros Hall of Fame in 2020. And whereas Billy Wagner is notably both the first NCAA Division III player and the first Virginian from west of Culpeper to be inducted into the National Baseball Hall of Fame. And whereas since 2013, Billy

[00:44:42] Wagner has supported the development of young aspiring baseball players as the head coach of the baseball team at the Miller School of Albemarle where his legacy in the sport will undoubtedly continue to grow for years to come. Now therefore be it resolved by the Senate, the House of Delegates concurring, that the General Assembly hereby commend Billy Wagner for his induction into the National Baseball Hall of Fame and be it resolved further that the Clerk of the Senate prepare a copy of this resolution for presentation to Billy Wagner as an expression of the General Assembly's admiration for his achievements and

[00:45:19] appreciation for the great pride he has brought to the Commonwealth. Senator I ask that you bring Mr. Wagner to the dais so that we may appropriately applaud his many accomplishments. Congratulations. Mr. Wagner on behalf of

[00:45:58] the Senate of Virginia I'm pleased to present this commending resolution to you thank you for your remarkable accomplishments not just in the areas of sports and baseball specifically but all of your wonderful philanthropic work that you continue to do for so many in your community congratulations thank you so much for joining us today we now invite

[00:46:37] the family of Mr. Wagner to join him in the well of the Senate so that senators may individually congratulate our distinguished guest. Thank you. Such a

[00:46:51] pleasure. The Senate will now be at ease. We've now arrived at the time in the

[01:05:47] morning hour when we have the honor of welcoming our distinguished guests who are joining us here in the Senate gallery. I give my daily reminder about our procedure we will have a senator rise and provide an introduction for their visitors and when your senator is introducing you please please rise if you are able and I will then offer the welcome of the Senate I ask that we all hold our applause until I have completed the welcome of the Senate the chair recognizes the senator from Northern Fairfax thank you madam president I'm I

[01:06:26] I stand for an introduction. - The Senator has the floor. - Thank you, I'm so grateful that today Pastor Gina Anderson Cloud from Herndon United Methodist Church was able to join us today. Gina Anderson Cloud grew up in the mountains of Southwest Virginia, where she developed a love for nature and being outdoors, and she met her future husband and partner in ministry, Reverend Bert Cloud, while studying psychology at Radford, we have both of them here. Gina's first career after receiving her graduate degree from VCU was in social work and gerontology, planning and advocating for improvements in health care

[01:07:06] and wellness. And after a joint call to ministry, Gina and Bert received their seminary training at Candler School of Theology in Atlanta, where they began their service as pastors more than 23 years ago. Gina is the lead pastor at one of the most active and really embedded communities in Herndon, Florist Methodist Church, and I ask that you give her a very warm Senate welcome. I thank the Senator for that introduction, and welcome to our Reverend Gina Anderson-Cloud, and welcome also to

[01:07:45] the Reverend Burt Cloud. Thank you for joining us. Thank you so much, Reverend, for your prayer, your words of devotion this morning. You and I share something in common. I, too, graduated from Emory and had wonderful friends at the Candler School of Theology, so glad to know that connection, but thank you for coming to Richmond today to offer those words of prayer. Senators, I ask that we give the warm welcome of the Senate to our Reverend Gina Anderson-Cloud and to the Reverend

[01:08:17] Burt Cloud. The chair recognizes the senior senator from Virginia Beach. Thank you, Madam President. I rise for an introduction. The senator has the floor. Madam President, I'd like to introduce members of Americans for Prosperity who are visiting the Capitol today. Americans for Prosperity is a grassroots organization committed to advancing economic freedom, limited government, and opportunity for all virginians we appreciate their engagement in the legislative process

[01:08:52] and their continued involvement in our public policy discussions across the commonwealth on behalf of senator craig senator reeves and a bunch of other folks i ask that we offer them the warmest welcome of the virginia senate thank you i thank the senator for that introduction and welcome to the organization Americans for Prosperity. Thank you for joining us today in our gallery, but thank you especially for visiting the Capitol. I hope you're having productive conversations as you visit the offices of our legislators. Thank you again for the work that you are doing.

[01:09:30] Senators, I ask that we give the warm welcome of the Senate to the representatives of Americans for prosperity the chair recognizes the senator from alexandria thank you madam president rise for an introduction the senator has the floor joining us today in the gallery are members of the alexandria city council we actually have six council members i think the mayor is probably shoveling snow and joining us later um but our alexandria city council includes not only

[01:10:09] dynamic dedicated public servants but people who have a remarkable range of experiences vice mayor sarah bagley has lived in four of virginia's seven cities played professional softball while we're on our baseball theme today for the tidewater tides and ultimately made alexandria her home she chairs the northern virginia transportation commission and is seen biking around at the city of alexandria uh councilman kanika gira uh has been a leader in making sure that residents are well communicated with including by bilingual communications and

[01:10:46] also works to see that we have a healthy city and that our transit system works well including our successful free dash bus system councilman john taylor chapman has the best nickname he's He's known through the community as the Nightmare, reflecting his strong support for Alexandria's nightlife and small businesses.

[01:11:05] And if you visit King Street in Old Town and enjoy the two blocks close to pedestrian traffic, please thank Councilman Chapman. Councilman Abdel El Nubi often jokes that he represents a true tale of two Alexandrias. He grew up in Alexandria, Egypt, and of course he's now living and serving in Alexandria, Virginia.

[01:11:26] member Jacinta Green has been a friend of mine and a former school board member. She founded an important program called Ruby Tucker Readers to instill a love of reading among children living in Alexandria's public housing and leads that program herself. And she's helped me recruit some outstanding Senate pages in recent years. And last but not least is Councilman Kirk McPike. He's a proud Eagle Scout and a self-described Trekkie I hired him as my campaign manager for Senate because partly because he was an Eagle Scout but he's also a Trekkie and

[01:12:04] his name includes not one but two captains of the Starship Enterprise Kirk is proud of his work to make it easier to build housing in Alexandria and madam president I would ask that you please extend the warmest welcome of the Senate to the Alexandria City Council I thank the senator for that introduction and And welcome to the honorable elected officials from the Alexandria City Council.

[01:12:28] Thank you for the work that you do on behalf of the city and the representation that you bring. Thank you for joining us today in the gallery, and I hope you are having wonderful conversations with all of our legislators as we work through this session.

[01:12:45] Senators, I ask that we give the warm welcome of the Senate to the representatives of the Alexandria City Council.

[01:13:00] - The chair recognizes the senator from Portsmouth. - Thank you, Madam President. Madam President, I rise for the purposes of an introduction. - Senator has the floor. - This will be two introductions in one.

[01:13:16] Today in the chamber, we have Dreamers Mothers in Action, a Virginia-based grassroots organization founded by immigrant women who came together from across the state to defend their rights and those of their families and communities. They work to advocate for policies and promote fair labor policies for domestic and care workers, build community power by encouraging civic participation and community leadership, defend immigrant rights, and push for equitable access to essential resources.

[01:13:44] Today, we recognize them for their tireless work uplifting immigrants and their families across the Commonwealth. We also have with us at the Chamber National Domestic Workers Alliance, which was founded in 2007 by organizers and workers leader representing nannies, house cleaners, and care workers.

[01:14:02] Today, it is an alliance of more than 76 organizations across 22 states, representing 395,000 domestic workers nationwide, to include over 60,000 care providers here in the Commonwealth. With the support of these organizations, many of us in this chamber, Virginia became the 10th state and the first in the South to pass the Domestic Workers Bill of Rights, which protects domestic workers in Virginia from discrimination, harassment, and unsafe working conditions.

[01:14:30] Today, we dedicate these organized women of color and building a coalition to make change. They are fighters for policies that value the work and care domestic workers provide to our families and loved ones. Please join me in welcoming these two groups to the Senate of Virginia.

[01:14:46] - I thank the Senator for that introduction and welcome to both groups, Dreamers, Mothers in Action, and National Domestic Workers Alliance. Thank you for the work that you do to represent so many who are not here today.

[01:15:01] I know you're working hard on behalf of all of your respective members in your organizations and fighting on the issues that impact not just the folks in the organization and not just their families, but the broader communities as well.

[01:15:18] Senators, I ask that we give the warm welcome of the Senate to the Dreamers Mothers in Action and the National Domestic Workers Alliance.

[01:15:36] - The chair recognizes the senator from Western Fairfax. - Madam President, I rise for the purposes of two introductions. - The senator has the floor. - Thank you, Madam President. In the gallery, I would like to welcome the Northern Virginia Association of Realtors.

[01:15:53] NVAR is represented here today by 2026 President-Elect Christina Rice, members of their 2026 Leadership Institute, and a few of the more than 100 realtors who have traveled to Richmond today from across the Northern Virginia region, from Winchester all the way to Arlington to Spotsylvania and everywhere in between.

[01:16:17] NVAR is the leading voice of real estate in Northern Virginia and beyond, promoting fair housing, professionalism, and business success among its neighbors, and preserving the ability of consumers to achieve the American dream of home ownership.

[01:16:35] With 13,000 members, NVAR serves a community of more than 2.5 million residents. Their members have sold over 16,000 homes and produced $14.7 billion in transactions in 2025.

[01:16:53] I hope you join me in welcoming them here today. - I thank the Senator for that introduction and those are staggering statistics. So my congratulations to NVAR for the work that you do on behalf of so many of your clients and communities.

[01:17:09] Thank you for all that you are contributing to Virginia's economy. And thank you certainly for joining us today in the Senate gallery. Senators, I ask that we give the warm welcome of the Senate to the Northern Virginia Association of Realtors.

[01:17:32] The Senator has the floor. - Thank you, Madam President. In the gallery today, it is also my pleasure to welcome my high school students leadership program attendees. And I ask them all to stand.

[01:17:48] I'm very excited that these high school students from five of my high schools in Western Fairfax County have come today. This is the second year my office has hosted an exceptional group of students from Fairfax County to come here, be part of the legislative process, to see how the hard work of laws are done, and hopefully, one day, to be in our seats.

[01:18:15] Today, we welcome Amina Naqvi, Anisha Treviti, Orion Banda, Brady Boo, Kaelin Huron, Elizabeth Lee, Gabriella Perrin, Kavan Morogan, Neithra Purushothaman, Nicholas Flanagan, Shivani Gattu and Twisha Sina to the gallery.

[01:18:36] I hope it is a will of this body to offer them a warm welcome, and say hi if you see them. - I thank the senator for that introduction, and I know how wonderful the program is that the senator has in the high school leadership program.

[01:18:53] First of all, I thank the senator for creating the program and giving the opportunities to so many of our high school students in her locality to participate. I hope you have a remarkable learning experience as you are coming to visit so many of our legislators' offices.

[01:19:11] And I know you are going to just learn so much from this experience. Senators, I ask that we give the warm welcome of the Senate to Senator Pekarski's High School Leadership Program.

[01:19:32] The chair recognizes the senator from Mecklenburg. you madam president i rise for an introduction the senator has the floor joining us in the gallery today um are non-profits and their leaders from across virginia at the capitol um for their non-profit advocacy day if you guys could rise um organized by the dan river non-profit network which provides services in my district and the center for non-profit excellence these non-profits have gathered today to visit legislators to share about the essential services they are providing

[01:20:12] to our communities in every region of Virginia. Nonprofits provide vital services to our communities across the Commonwealth and they also play an important role in Virginia's economy, employing a quarter of Virginia's public service workforce. Something you may not consider very often are that non-profits offer often cover services not fully funded by the state for instance my non-profit gets calls and referrals from victim witness advocates very often when they don't have enough staff or resources to cover victims services in in my counties

[01:20:54] we're we're very happy to have them here today i got the pleasure of speaking with them this morning And hearing about all the wonderful work they do from providing services to the homeless to just advocating in every way for citizens across the state.

[01:21:10] And I'm just honored to know them and to work with them and to have them working for us all across the Commonwealth. We're very, very honored that they step up and do jobs that they don't have to do and work night and day tirelessly for people of all kinds in the Commonwealth of Virginia.

[01:21:29] And I hope that we'll give them all a warm welcome of the Senate. I thank the Senator for that introduction and echo the sentiments that the Senator has shared. I, too, had the opportunity to chat this morning with the folks from the Center for Nonprofit Excellence and just echo the sentiment in thanking you and thank you with a heart full of gratitude for the work you do for so many in our communities.

[01:21:59] Senators, I ask that we give the warm welcome of the Senate to representatives from the Center for Nonprofit Excellence and the Dan River Nonprofit Network.

[01:22:17] The chair recognizes the senior senator from Fairfax. Thank you, Madam President. I rise for an introduction. The senator has the floor. Thank you, Madam President. I rise for the purpose of an introduction. I'm pleased to recognize two Emmy Award-winning public media stations serving the Commonwealth, Blue Ridge PBS, based in Roanoke, and PBS Appalachia, based in Bristol, Virginia.

[01:22:40] I've had the opportunity of working with them before on issues, and I just really like what they do. Together, these valued partners of the Virginia Department of Education produce high-quality educational content that supports teachers and students across the Commonwealth, including Emmy-recognized collaborative work.

[01:22:58] Increased investments made by the Commonwealth last year allowed Blue Ridge PBS to create Virginia Roots: A Journey into Appalachian Music, an Emmy Award-winning collaboration between Blue Ridge PBS and the Virginia Department of Education, one of the first Emmy recognitions for joint work with any Department of Education in America.

[01:23:17] PBS Appalachia is the nation's first all-digital public media station. In just two years, the PBS Appalachia team has earned 18 Emmy Awards, including the prestigious Overall Excellence Award, recognizing its outstanding content for Southwest Virginia and its service to the region, demonstrating Virginia's leadership in media innovation and the future of public broadcasting.

[01:23:40] And Madam President, I ask that you give them the warm welcome of the Senate. I thank the Senator for that introduction and welcome to our guests representing Blue Ridge PBS and PBS Appalachia. Thank you for the critical service that you provide to so many communities and the educational and informational resources that are available through our wonderful public broadcasting services senators i ask that we give the warm welcome of the senate to blue ridge pbs and pbs appalachia

[01:24:13] the chair recognizes the senator from york thank you madam president i rise for an introduction the senator has the floor joining us today are students and faculty from william and mary William & Mary is the country's first university, and today is their annual Road to Richmond.

[01:24:43] Students will meet with senators and delegates, legislative staff, and governor's appointees. It is a great networking opportunity for the students participating to meet William & Mary alumni working in state government, and it is a valuable experience for them to make connections and witness the great experiment of American democracy.

[01:25:04] As a reminder, William & Mary's legislative reception is tonight at 5:30 p.m. at the Library of Virginia. Madam President, I ask that you extend the warm welcome of the Senate. I thank the Senator for that introduction and welcome to the students and other representatives from the College of William & Mary.

[01:25:24] Thank you for representing the institution so well and I know many of us will be joining you this evening at the reception. are looking forward to it. Thank you for coming to speak to your legislators throughout the day today. Senators, I ask that we give the warm welcome of the Senate to the representatives of William and Mary. Is there any other business to come for the morning hour? The clerk will call the calendar. Senate calendar for

[01:26:03] Thursday, January 29th, 2026. Regular calendar. House bill on third reading. House Bill 1384 a bill relating to the General Appropriation Act Department of Elections reported from the Committee on Finance and Appropriations the question is shall I'm sorry the chair recognizes the senator from Portsmouth thank you madam president madam president I move that the bill passed the senator has the

[01:26:41] floor thank you madam president we've gone over this but I will go through it again it's a bill to amend and reenact item 5 and 6 and enactments 14 15 and 16 of the chapter 725 of acts of the assembly of 2025 which appropriates the public revenues for two years ending respectively on june 30 2025 and june 30 2026 and to amend chapter 725 of the act of assembly of 2025 which appropriates the public revenues for two years ending respectively on june 30 2025 and june 30 2026 by adding an item numbered 78.10 and by adding enactments number

[01:27:18] 17 18 19 and 20 which appropriates the public revenues for two years and respectively on june 30 20 25 and june 30 20 26 and is to provide for the submission of the voters a proposed amendment to the constitution of virginia by amending section 6 of article 2 by adding in the schedule a section number 6 and to repeal 30-13 of the code of virginia relating to the general appropriations at department of elections the chair recognizes the senator from hanover thank you madam president

[01:27:55] madam president speaking to the bill the senator has the floor madam president uh we had a lengthy debate uh about the senate version just the other day so i'll make my remarks uh briefer today but madam president this is a constitutional amendment to allow the majority caucus in the general Assembly to gerrymander congressional districts. Madam President, this is a constitutional amendment that went to the people, the people voted on it, and now

[01:28:32] the majority caucus doesn't like the answer that the people gave, so we're going to go back and do it again. But Madam President, I would like to point out that as Virginians have just dealt and continued to deal with ice and snow impacting their everyday lives. Their energy costs are going up. It is hard for them to pay to heat their homes. They're dealing with their children having to be at home and not being able to be at school. And Madam President, they are

[01:29:06] trying to provide for their family. It's incredibly expensive as Virginians look to try to make sure that they had provisions that the power went out if they were stuck at home. And Madam President, instead of us focusing on affordability, instead of us focusing on making sure Virginians keep money in their pocket, the first bill that's going to the governor's desk, the first bill the governor is going to sign, is going to be one of a partisan gerrymander and the citizens of Virginia, it's going to cost them five million dollars for the

[01:29:46] privilege for the governor to sign that first bill. Madam President, any single one of my colleagues across the aisle could stop this bill tonight, today. Madam President, this legislature should be focused on Virginians and making sure that they can afford their grocery bills, making sure their energy costs are less, making sure they have more money in their wallet. Partisan gerrymandering should not be the first order of the day and Virginians should not be forced to pay $5 million

[01:30:25] to have that gerrymander forced upon them. The question is, the chair recognizes the senator from eastern Fairfax. Thank you, Madam President, speaking to the bill. The senator has the floor.

[01:30:45] Thank you, Madam President. We've debated this at length now and I don't think there's a need to re-debate everything we've talked about through today. There's a lot going on in the country right now the and what what we talked about the purpose of this is for our state to make sure that it's properly represented in the federal system right now you have Texas Missouri and North Carolina which have all basically rigged

[01:31:24] the system at the request of the guy across the river in order to minimize Virginia's voice at the federal level Virginia has to respond when other states try to rig the system against Virginia Virginia has to be able to represent itself and that's what this amendments about and I find it ironic that the minority caucus doesn't seem to think affordability has some role in this we want to talk about affordability let's talk about tariffs

[01:32:01] because right now Congress hasn't done a damn thing to stand up to what's going on across the river on tariffs because they can't they don't have the ability to because they don't have the votes tariffs right now are costing the average Virginia family between $1,200 and $1,700 a year due to prices on imported goods. Groceries rose by an estimated 4%. Clothing is up 14%. Vehicles have gone up 4,000% in average cost because of the

[01:32:37] actions of the guy across the river that have been completely unchallenged. I haven't heard a peep on the other side about it. I haven't heard hardly a peep about it out of the other folks in the same

Party from the federal level about it. Maybe the Supreme Court will do something about it for us.

[01:32:56] We'll see. They'll finally stand up. But these are costing people real money. The Port of Virginia has seen exports plummet. They've seen imports go down. I read in one paper three weeks ago that we haven't seen a single purchase of soybeans from China in over five months for the first time in the history of them tracking soybean exports. If you ask anybody, it's in the timber business.

[01:33:28] They can't export timber anymore out of the Commonwealth of Virginia because of tariffs. Virtually everything we export out of this state is being screwed up by these tariffs. We're trying to build a wind industry in Hampton Roads.

[01:33:47] It's being the guy across the river is trying to gut that. That could be one of the main driving sources of jobs in Hampton Roads. At least that's what we've been trying to invest in collectively in this body for like the last 10 years. Haven't heard anybody on the other side complain about that for fear that the guy across the river might do something to them.

[01:34:10] So, Madam President, if we want to talk about affordability, having a Congress that actually stands up for the people of this state against what's happening across the state and the war that's been declared in our state by the guy across the river because we didn't vote for him is a good way to start.

[01:34:26] I'm going to hope we can pass this bill. The chair recognizes the senator from Rockingham. Madam President, rise to speak to the bill. The senator has the floor. Madam President, we've been here, what, two and a half weeks, and the first week was dominated by the inaugural and a couple of State of the Commonwealth speeches.

[01:34:50] I sat here and listened very attentively down the hall as the incoming governor spoke about unity and bipartisanship. And you want to talk about irony. The great irony is that this is the very first bill that she is going to have an opportunity to sign.

[01:35:12] She made very clear during the state of the Commonwealth that she's going to sign it. And it was anything but an effort to promote bipartisanship or unity here. My good friend, the senator from Eastern Fairfax, talks about other states, talks about Texas, Missouri, North Carolina, but he doesn't talk about California, doesn't talk about Indiana, where the Republicans in Indiana said, "No, we're not going to do this.

[01:35:40] We're not going to be pawns in this national fight, and we're not going to disenfranchise voters across the state of Indiana. We're not going to redistrict. Here in Virginia, the voters have said in overwhelming majorities that we've had enough with partisan redistricting.

[01:35:58] They may very well have an opportunity to have another say in April, notwithstanding the fact that a court has already ruled that this is patently illegal and in violation of the law. I also find it very interesting that my friend from Eastern Fairfax, the center from Eastern Fairfax, continues to run down our economy.

[01:36:19] You know, I've been sitting in meetings over the course of the past couple of years in which ever since the president was inaugurated, I've heard nothing but hope that our economy is going to crash, that the economy here in Virginia is going to go to the cellar, that people in Virginia are going to suffer as a consequence of these policies.

[01:36:38] I hope, whether it's a Republican president or a Democratic president, I hope that the people of Virginia are going to prosper. I never have hoped for discomfort, for economic demise, for economic uncertainty for our citizens here in the Commonwealth of Virginia.

[01:36:58] I want our economy to do well. And you know what? Our economy has been doing well. You know, there were professions and predictions of doom and gloom with the tariffs. And you know what? I'm an economist by education.

[01:37:14] I didn't like the tariffs. I still don't love the tariffs. And I thought that was probably the wrong course to take. And I was a bit afraid of what it was gonna do to the economy. I continue to read articles in the Wall Street Journal and elsewhere about economists across the country who've been truly surprised at how well our economy has performed, notwithstanding these tariffs.

[01:37:43] It has done extremely well. The model estimates for the GDP now point towards significant continued growth. The U.S. stocks delivered another year of solid gains, major indices posted a double-digit return in 2025.

[01:38:04] This is prosperity that Virginians are joining in. Wholesale price of a dozen eggs is down considerably over the course of the past couple of years. Price of gasoline is down. Government spending has actually fallen for the second straight quarter.

[01:38:21] The economic indicators look pretty doggone good. If the economy is the reason for this, I don't see the indicators that point in that direction. To me, this is nothing but political, plain political gamesmanship, an effort to engage in the age-old practice of disenfranchising people.

[01:38:50] This time it's on the basis of political affiliation and ideology. It's wrong no matter what the reason is. I would hope we'd vote no.

[01:39:05] The chair recognizes the senator from Western, Prince William. Thank you, Madam President, I want to speak to Bill. The Senator has the floor. Thank you, Madam President. Madam President, I heard about the economy just now and about the performance of Virginia's economy.

[01:39:21] Headline from VPM, Virginia Public Media, right here on January 20th, 2026. This is as in this month. Headline, Doge Cuts Wiped Out Years of Growth in Virginia's Federal Civilian Jobs. Headline, next headline, the Trump administration's cuts took away more than 20,000 government jobs last year.

[01:39:41] from the story. Federal job losses tied to the Department of Government Efficiency wiped out all of Virginia's federal job gains of six years in just 11 months last year, according to Bureau of Labor Statistics data. In most years since 2005, Virginia had a net gain of federal jobs, but in 2025, the Commonwealth saw federal job losses accelerate sharply, resulting in a net decline of 23,500 civilian federal jobs through November, according to analysis by BLS data by the Virginia Center for Investigative Journalism at WHRO.

[01:40:17] In addition, company layoffs reported to the state totaled nearly 7,000 workers last year, an increase of about 70% from the previous year. finally overall civilian employment in virginia in november was 4.268 million according to the bls at the end of 2024 overall civilian employment stood at 4.273 million which means there was a drop the figures do not include military personnel or farm workers madam president the last thing i'll say on this is to bring it home to my hometown manassas where i talked to two of my constituents

[01:40:56] who are right around my age, and they're a married couple. They put in combined, when I saw them earlier this month, 300 applications between the two of them since they lost their jobs last year.

[01:41:12] One of them alone told me, and he counted 64 rejection letters that he got. And keep in mind, this is someone who is eminently qualified in the field that he was applying for. This is the real life of what out of work federal workers and federal contractors are facing across the Commonwealth, especially in Northern Virginia. It is very, very hard for anyone here to go to one of my constituents who lost their job and was told by the previous governor, 250,000 Virginia

[01:41:48] jobs available, surely you'll find one. It's really, really hard to tell them that, hey, if you just keep at it you'll be fine when the reality is they are keeping at it they are working and it's so hard for them to get those jobs that they need right now that's a day in the life of the economic engine that runs Virginia's economy thank you madam president the chair recognizes the senator from Colonial Heights thank you madam president speak speaking briefly to the bill the senator has the floor madam president this is a bill and not about

[01:42:24] the economy but about gerrymandering in Virginia and what has changed is we now have a new resident in the executive mansion a new governor in Virginia and this is going to be that new governor's first test of her leadership as to whether or not there is going to be bipartisan compromise whether or not there is going to be a reaching across the aisle whether or not there will be a commitment to past statements in opposition to gerrymandering a test of

[01:42:59] leadership of standing up for the two-thirds of Virginians who voted to make gerrymandering illegal in Virginia and so I think that this is a a major opportunity I hope it's an opportunity for leadership for our new governor on this issue because she will have the ability to stop this from going forward today as quickly as today so I hope that we will see that madam president we will see that leadership out of our new governor we will see but this is I think really that first test as to whether we will we'll see that bipartisanship that

[01:43:36] moderation coming out of our new our new governor the chair recognizes the senior senator from Prince William thank you madam president speaking to the bill the senator has the floor we use bipartisanship when it's really convenient but the fact is when the tenants of separation of powers is loosely thread together with lip service it is meaningless my constituents much like the center from Western Prince William have been devastated and seen

[01:44:13] nothing but tack after attack after attack taking down from websites core public information the removal of jobs removal core things it is about tariffs it is about economy but more importantly it's about the checks of powers that are blindly being followed like an order from a general who's encrazed on power and no sense anymore of what the American people fear fear with the feel on an everyday basis is the checks and balances that we formed

[01:44:47] here in these halls and we covet so much that are being blindly blindly ignored with precise execution and no spine or willingness for those who have power to understand that power they have in separate branches are incumbent them to stand up and fight and push back so I love words bipartisan compromise but there shall be never compromise upon those core tenets which we value in this chamber as a Senate which we value upon our institutions which we formed here in Virginia that's not being followed across the river so if that

[01:45:25] side of the house in any influence on people please tell them to start standing up standing up for the things that are hurting our economy and yes as the Senate from Eastern Fairfax said the tariffs the exports to our ports the jobs on so many parts and our economic engine in Northern Virginia is being substantially deteriorated day by day. So if we want to talk bipartisan compromise I shall not compromise on our separation of powers nor shall you.

[01:45:51] The chair recognizes the senator from Roanoke. Thank You Madam President. Speak briefly to the bill. The senator has the floor. Thank You Madam President. It's gerrymandering has been wrong. It's always been wrong. We know it's wrong.

[01:46:11] We're now hearing justifications that something else is wrong and so we're going to try to make it right with this in their mind. The previous executive down the street was so upset by a local school board that he tried to suspend their terms. And he said, this is what we're going to do. We have the amendment to do it. I wasn't willing to go along with that because I thought it broke with what we have here in the Commonwealth. If we find something so objectionable we take it to the voters and we have an election. And that is what happens. We do not suspend our

[01:46:48] system of government and we definitely don't do it by saying this is a principled move this is this is a complete lack of principle it's a suspension of what we have done and I really hope that we'll have at least one member that's willing to stand up and say they're not going to do this and if no one is I hope that the governor will not make this her first action and poison the well of governance here in the Commonwealth thank you madam president the chair recognizes the senator from Arlington thank you madam President, I rise to speak to the motion. The Senator has the floor. Thank you, Madam President.

[01:47:25] I just want to remind the body that what this bill will do will enable us to move forward. Both chambers pass language for a constitutional amendment. The constitutional amendment does not need the governor's approval, but what we are talking about is going before the voters. Once again, we are going to give them the chance to voice their opinion on something very important.

[01:47:52] this one time one time redistricting of congressional districts we're not doing anything behind closed doors we're not pretending this is something that it's not it is going to be a question that goes before the voters and they will have the opportunity to decide how they want their voice heard and how powerful they want their voice to be heard that's all this is about i really hope it is the will of the body to pass this bill thank you the chair recognizes the senator from

[01:48:30] Franklin County. Thank you, Madam President, speaking to the measure. The Senator has the floor. Madam President, I've been here 16 years, 16 sessions. This is my 16th. I'm honored to be here. I know. I used to be the young Turk. Now I'm the old head. But let me say this. When I hear from my good friends on the other side of the aisle that, "Hey, this is nothing but a little thing. We're just taking care of a little business because the guy across the river is a meanie," then quite

[01:49:07] Quite frankly, I just want to bang my head on this desk when they say, "Oh, you know, it's just for a little while, we're just changing the Constitution temporarily," which is something I have never, ever heard in this chamber, and I don't think this chamber has ever heard it or those words bounced off of its walls.

[01:49:30] We change the Constitution, we do it very deliberately, and we do it for a reason because it requires it as we move forward for Virginia until the end of time. Not this constitutional amendment,

which now we're pouring five, six million dollars in.

[01:49:46] We're calling it a general appropriation so we can move this law along when it's a specific appropriation, which then would require more time for it to be passed and more people for it to pass. Quite frankly, what they're doing here, and they say, well, you know, this just gives us the money so we can go forward.

[01:50:05] Ladies and gentlemen, Madam President, no. In this bill right here, which we've already seen, also has the provision that moves jurisdiction of an ongoing court case to their backyard. Furthermore, it not just does that.

[01:50:23] It goes back in time, as my friend the senator from Hanover stated, like they have a DeLorean changing the law because the law didn't suit them and the judge and the court and the lawsuit to stop this illegal act said that you did not post, before you brought this up, notice of the change in the Constitution on the courthouse steps as required.

[01:50:46] Now, I had that statute yesterday and I was reading it. We amended it in 2021, and it's a statute of notice. And we included as including in that statute of notice that the posting was still required, and it could be either done on the courthouse steps.

[01:51:03] We have boxes there. We all look at them. If you're a lawyer, we walk through the front door. We look at them all the time. Lost property, can't find your scuffle of husband that you want to divorce, name changes, all there. And I read them with vigor. But we also allowed them to happen online, that by satisfying the requirement, we could do it electronically on the court's website.

[01:51:26] We didn't get rid of that law when we amended it. We thought it was perfectly fine when we added the electronic transmission notice as a satisfaction of the notice requirement. But now, this bill, H.B. 1384, tries to go back in time and eliminate that law as it never existed, so that it will fit what they're trying to do, this round peg in a square hole.

[01:51:51] and undo what Virginians told us very clearly that they wanted done, that they would be the ones to pick their legislators and not the other way around. I hope all Virginians are not fooled by what's going on here.

[01:52:09] It is sleight of hand. It is not pretty. It is not right. It is not just. And it is not the Virginian way. Six to five. Eleven congressmen, six to five favor the Democrats. I dare say, what, are you scared that you're going to lose some congressional seats?

[01:52:26] the last time this president was in office i think the democrats picked up 41 congressional seats you scared that texas might add a couple seats i'm reminded what i tell my children just because other people are doing it doesn't make it the right thing to do and doesn't mean you should this is virginia i think we should act like it thank you madam president seeing no other senators who wish to speak president the senator from eastern fairfax smithville just a couple other

[01:53:06] What points do you want to make? Speaking to the bill? The Senator has the floor. Mr. President, I just want to note a couple things. First of all, I just want everybody to remember, first of all, the court case, we'll find out the answer to the court case when the appellate courts speak and how much legal validity there is in the arguments that were made and the judge's opinion.

[01:53:24] We'll find that out when the court of appeals or the Supreme Court has the final word on that. But I do want to note that when this goes on the ballot in April, it's not us that has the final word on this. It's the people of Virginia. People in Virginia are the ones that decide whether or not Virginia responds to what's happening in Texas, North Carolina, and Missouri, and has been mentioned yet on the floor, but also Florida.

[01:53:55] Because three weeks ago, Governor Ron DeSantis called the Florida legislature into special session for the week after, I believe the week after this referendum is scheduled, for Florida to join the party in sticking it to Virginia.

[01:54:14] And voters are going to have their chance to say whether Virginia ought to do something about Ron DeSantis and Greg Abbott and North Carolina and Missouri telling them that they don't get to have a say in who controls Congress.

[01:54:32] That's what that amendment's about. And I also want to say, and as it's been said, it is a temporary, restrained measure. We have never seen anything like what we have going on across the river right now in the history of this country, ever. It is historically unprecedented to see a president who doesn't think the law or the Constitution applies to him, who has a court that will not do anything to curb his power, a Congress that does whatever he feels, lets him do whatever he feels like.

[01:54:59] It is unprecedented to have any kind of check and balance right now at the federal level. And so you see an unprecedented, unique, temporary response. And with regard to the economy, I just want to note, this isn't Scott Cervell's theories on what's happening with the economy.

[01:55:15] We've heard numerous briefings now at Senate Finance. We've got the State of the Commonwealth report from ODU three months ago. They told us job growth dropped significantly from an average of 6,200 a month in '24 to 1,000 a month in 2025. We got a briefing from the Secretary of Finance, Secretary Sickles, who said employment growth is positive year over year or slowing.

[01:55:38] Some said it's been negative in the last six months in the state of Virginia. Federal job losses are delayed, but we've now reached the fork in the road now that all the layoffs have come in. US unemployment ticks down, Virginia is down with it. Federal withholding is down.

[01:55:54] There are regional disparities. Northern Virginia has hurt the worst. Look at the Northern Virginia housing stats. Northern Virginia is the engine of our economy. And if you look at our revenue growth, it is barely above inflation, which means the most of the revenue growth we see is inflationary.

[01:56:11] It's not actual economic growth. The economy is not healthy. And I appreciate the folks in the minority wanna say it's all great because they just got their hands off the steering wheel after four years. But it is not great, and it's not great because of what's happening in D.C., and it's also not great because of the man that was in the House down in Capitol Square for four years, who, from my perspective, was more interested in preparing himself to run for president than he was in actually governing the state in a way that managed it for the benefit of everybody in the state.

[01:56:41] And we're now seeing the consequences of it. I hope we can pass this bill so the voters can have their say. The question is, shall HB 1384 pass?

[01:56:56] All in favor of the motion will record their votes. Aye, those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close

the roll. Ayes 21, noes 19.

[01:57:14] Ayes 21, noes 19, HB 1384 passes. Uncontested calendar, Senate bill is on third reading. The chair recognizes the senator from Eastern Fairfax. Madam President, I move all the Senate bills on third reading and uncontested calendars on pages 2 through 4, Senate Bill 51 to 742, be placed their final passage in the block.

[01:57:37] Any senator desiring to move the bill from the block shall do so after the clerk has read the number of the bill. The question is, shall the Senate bills on the uncontested calendar, third reading, pages 2 through 4, Senate Bill 51 through Senate Bill 742, be placed on their final passage in the block with the understanding that any senator desiring to remove a bill from the block will do so after the clerk has read the number of the bill all in favor of the motion will say aye any opposed no the eyes have it the motion is agreed to the bills are before us in the

[01:58:14] block the clerk will read the number of the bills senate bill 51 senate bill 317. madam president for what purpose does the senator from the senior senator from virginia beach rise can senate bill 51 come out of the block thank you without objection senate bill 343 senate bill 385 senate bill 681 senate bill 742. madam president senator from virginia beach can

[01:58:50] senate bill 681 come out of the block without objection madam president thank you senator from senior senator from prince william can senate bill 385 come out of the block without objection the question is shall the bills in the block pass that is all bills except for senate bill 51 on page two senate bill 385 on page three and senate bill 681

[01:59:29] on page four are the senators ready to vote have have all the senators voted do any senators desire to change their vote the clerk will close the roll eyes 40 no zero eyes 40 no zero the bills in the block pass returning to page 2 senate bill 51 the chair recognizes the junior senator from virginia

[01:59:58] beach good afternoon madam president i move the bill pass and speaking to that motion the senator has the floor thank you madam president sb 51 is a general law change that we specifically try to gear towards the city of virginia beach we have an upcoming election this year we also have a

[02:00:27] charter change that's in a separate bill so that helps us convert our single member districts and And that is the bill before you. The question is, Senator from Roanoke.

[02:00:50] Speaking briefly, Madam President. The Senator has the floor. Madam President, I talked about this in committee. I think that the greatest challenge with this bill is it's not expansive enough. I think there's a lot more places across the Commonwealth that would benefit from this.

[02:01:09] And I represent some of them. And I hope that this will be something we'll continue doing. Thank you, Madam President. The question is, shall Senate Bill 51 pass? All in favor of the motion will record their votes aye, those opposed no.

[02:01:26] Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their votes? The clerk will close the roll. Ayes 26, noes 14. Ayes 26, noes 14.

[02:01:43] Senate Bill 51 passes. On page 3, Senate Bill 385. The chair recognizes the senator from Shenandoah. Madam President. Senator from, senior senator from Prince William.

[02:02:00] Could that go by temporarily, please? Without objection. On page four, Senate Bill 681. The chair recognizes the junior senator from Virginia Beach.

[02:02:21] Thank you, Madam President. I move the bill passes speaking to that motion. The senator has the floor. All right, now bear with me, colleagues, for this is going to be a history lesson in the city of Virginia Beach.

[02:02:37] All right, I'm going to give you all the good. the bad and the ugly. This day has been a long time coming for the people of Virginia Beach. It's a city with a population over 450,000 people. Our city boasts a Guinness Book World Record of having the world's longest pleasure beach, 35 miles of coastline along the Chesapeake Bay and Atlantic Ocean. Our community is diverse. We're home to a great and historic agricultural community.

[02:03:07] We're home to three military installations. We're also home to my favorite NES master Oceana master jet base and I'm particularly fond of the old f-14 Tomcat this is my home in fact I even have great neighbors now when my wife and I were pregnant she did all the heavy lifting but we were pregnant that's right our neighbors actually took out our trash for us and made sure and looked over our house while we spent over a week and a half in the hospital because my wife had some birth complications so we have great

[02:03:45] neighbors we're home to surfers we have the oldest continually ran surfing competition in the world we're home to world-class fishing in fact angler aboard the high hopes out of Virginia Beach set a new state record just a couple days ago or a week ago by catching a 832.6 pound Atlantic bluefin tuna we're also home to the historic communities throughout our city historic Kinsfield but I'm most proud of the area where I'm from, the historic Sea-Tac community.

[02:04:20] The historic Sea-Tac district in Virginia Beach is listed on the National Register of Historic Places in May of 2024. It is a historically significant African-American community with roots extending back to the 1800s. It's recognized as one of the oldest free African-American communities where many families have resided for generations.

[02:04:41] It's located on our oceanfront, and it is known for its deep history of black churches and early 20th century homes. Now, here's something that you might not know. That before Virginia Beach became a city, it was actually known as Princess Anne County.

[02:04:59] Princess Anne County was actually mentioned in the Emancipation Proclamation. But, Princess Anne County, Virginia, was not included in the freedom provisions of the Emancipation Proclamation. When President Abraham Lincoln issued the final Emancipation Proclamation on January 1st, 1863, it specifically exempted certain counties in Virginia that were already under Union control, Union Army control.

[02:05:25] Princess Anne County was explicitly listed for that reason. While not freed by the proclamation, the Union Army did maintain a presence in the county. Other exempted areas included Alcomat, Northampton, Elizabeth, York, and Norfolk counties.

[02:05:41] Now, Virginia Beach was formed as a modern independent city on January 1st, 1963 through the merger of a town of Virginia Beach and Princess Anne County. In fact, this area goes all the way back to the first English landing at Cape Henry in 1607, with the town being officially incorporated in 1906.

[02:06:04] Now, we know in 1619 at Fort Monroe, this event is considered to be the beginning of chattel slavery in the English-occupied North America. Now, Virginia Beach became an independent city in 63, as

I've already stated, and they became an independent city to prevent Norfolk from annexing part of its land and tax base.

[02:06:29] So, here's the ugly. When Virginia Beach became a city, they actually put in a hybrid voting system to protect this white majority. That population at the time in 1963 was around 145,000.

[02:06:47] A hybrid voting system meaning there was district-based voting, but yet everyone in the city voted for who represented them. Now, here's to continue with the ugly. Virginia Beach also operated as a sundown town, particularly in the resort area.

[02:07:08] The city enforced strict segregation that barred black people from the beach and white-owned hotels with policy designed to maintain a white-only appearance. But despite that development, the historically black SeaTac community still existed and rose.

[02:07:26] Back in prior to 2018, very few minorities were elected to the Virginia Beach City Council. We have court documents indicating that throughout the city's history, since 1966, only a handful of Black and Asian American candidates have been elected.

[02:07:46] My, myself, I am only the fourth African American at the time to be elected to the Virginia City Council. There was one Asian American, many of you may have known, former delegate Ron Villanueva, also was elected prior to 2018. When I decided to run for Virginia Beach City Council, there was a good old boy network who came to me and said I did not get permission to run for the Virginia Beach City Council.

[02:08:14] I couldn't believe it, but I ran and won anyway, giving the most votes in a Virginia Beach election. Now at this time, my colleague, who was a Republican, she wanted to ask, this is 2018, she wanted to ask the people, what do you all think about the election system?

[02:08:31] But the good old boys got wind of it, and they shut that down. They said, you're not going to ask the people, what do you think about the election system by way of a referendum? And so she shut that down. It was since 1996 since that question was asked to Virginia Beach about a referendum.

[02:08:52] Well, this upset the status quo. At the same time, the Voting Rights Act was passed in Virginia, as well as a law that outdated all at-large voting, where districts' requirements were implemented.

[02:09:07] Also at the same time, LaTosha Holloway and Georgia Allen, they challenged the Virginia Beach elected system in federal courts, arguing that it disenfranchised voters in Virginia Beach. Now, I was a part of city council at the time, and I can tell you the city council members were pretty arrogant and dismissive of the federal lawsuit.

[02:09:27] They thought it wasn't going to go anywhere in the courts that were going to listen to it. But the federal court agreed and ruled that the at-large system in the city charter diluted the voting power a coalition of minority voters in violation of federal law and the federal courts imposed a 10-1 system 10 districts at large 10 districts with only the mayor being at large now people were upset as you can imagine the good old boys were upset and so but they still ran their candidates in their respective districts they spent hundreds of thousands of dollars trying to win their

[02:10:03] district it was a very tight race for district six which is typically our which is our oceanfront They only lost that race by 227 votes. They also ran another candidate in District 10, but they lost that race by 1,000, 1,100 votes.

[02:10:20] So they outspent their candidates almost 20 to 1 in each district, and yet they lost. And so the candidate who ran in District 6, well, he didn't like the outcome, and so they filed a lawsuit. They filed a lawsuit, and at the same time, they pushed for a study.

[02:10:36] They say, well, we got to have a study because there's no way the people of Virginia Beach likes this system. They hired the Weldon Cooper Center at UVA to do a study. Here's what it says anyone wants to read.

[02:10:52] And again, I understand that this is a lot of information, but I wanted you all to understand where this all came from, the origins of this. So they hired UVA at the Weldon Cooper Center to do a study to ask the city what they thought about the election system.

[02:11:10] And here are the results. The survey was administered from April 4th to June 2nd, 2023 via Post-it mail and web and in-person meetings. Results indicated that participants felt the new voting system generated positive experience and matched their expectations, and that voters had slightly greater familiarity with the new system than the previous.

[02:11:32] Furthermore, respondents felt that the new system better represented their interest than the previous system. Finally, where there was more than 63% in opposition, 37% to the city, including a referendum on the 2023 ballot to further explore local elections options.

[02:11:50] There was a significantly greater support of 81% for keeping the 10-1 system in place in Virginia Beach. There was no statistically significant difference in level of support by district, gender, race, income, or education level.

[02:12:09] So when those results came out, again, the good old boys got dismissive of the study. They said, there's no way that study's accurate. We don't care about that UVA study, even though the city has already spent millions of dollars not only defending themselves in federal court against the Holloway case, but also now they spent almost $400,000 to UVA, Weldon Cooper Center to put on this study.

[02:12:33] So when the results came back, they still dismissed that. So next, the Republicans in the city, they said, well, no, we're going to do a referendum because that's, take it to the people. We don't want to hear a study. We want to hear from the actual people, and they pushed for a referendum.

[02:12:50] The referendum was on the ballot. The referendum was on the ballot, and the voters chose to support the 10-1 system. And everyone at the time, including our city council, agreed that whatever the results of the referendum, everyone would abide by.

[02:13:12] the voters chose to keep the 10-1 system. So the mayor, the city council, the vice mayor all voted unanimously to support the adoption of our city charter to the 10-1 system. It has passed by referendum. We have done the study and so now here we are. My question to you, my colleagues in the Senate, is if we're not gonna listen to city council that voted unanimously or listen to the people of Virginia Beach voted by referendum to support a 10-1 system, then what is the standard. What is the standard? I'm not asking you to vote for a Democratic bill because it's now

[02:13:51] I'm asking you to vote for a Republican bill. This was a coalition bill of people across the political spectrum, people who weren't even, not even political. This is the people of Virginia Beach. And so I ask you once again for your vote in supporting this measure so we can finally put this to bed. The

people of Virginia Beach agreed that this is the best system for our city. And Finally, they don't want to live under the thumb of one individual that controls our city.

[02:14:26] And with that, Madam President, I move the bill to pass. The chair recognizes the senior senator from Virginia Beach. Thank you, Madam President. Speaking to the bill. The senator has the floor. Madam President, I love the city of Virginia Beach.

[02:14:42] I lived there. I've lived there for a long time. I served on a couple of those bases that the junior senator from Virginia Beach brought up. I truly love Virginia Beach. As a matter of fact, I served eight and a half years on city council in Virginia Beach. And I enjoyed that, for the most part.

[02:15:00] And when I served, I served under a 7-3-1, where you could vote for every member, but you had seven districts that were specific to the districts, three at large and one mayor. It worked well. It worked extremely well. Everybody had a chance to vote for every member.

[02:15:18] And I believe, after my time in the military, that we should be able to vote for as many people as possible. We should be able to vote for as many of our leaders as possible so we can, A, engage with them and hold them accountable.

[02:15:33] Madam President, while I served on Virginia Beach City Council, I served with minorities my entire stay. And when the junior senator from Virginia Beach ran for city council, he may remember I actually supported him. I thought he was going to do a fantastic job.

[02:15:49] As a matter of fact, I wrote him a personal check and supported him. And I was behind him. Not only that, I voted for him and I got a bunch of my friends to vote for him. I thought he'd do a wonderful job on city council. Madam President, I believe we should have the opportunity to vote for as many of our leaders who influence our pocketbooks as possible.

[02:16:13] And I understand there was a referendum in Virginia Beach, but we also have active court cases. We have one that will have a decision from the Supreme Court in the next few weeks. Madam President, that court case may end up unwinding what happened in Virginia Beach and with that Madam President again I think we should be able to vote for as many leaders as possible who affect our pocketbooks and I'd ask you to vote no on this thank you very much the chair recognizes the senator from

[02:16:50] Alexandria would the senior senator from Virginia Beach rise for yield for a question Will the Senator yield? Madam President, I'm happy to yield. Senator from Alexandria. Thank you, Madam President. I followed his logic, but I'm wondering, does he feel that the people in Virginia Beach should be voting to determine the Senator from Arlington or Alexandria or Charlottesville?

[02:17:16] The Senator has the floor. Madam President, I respond to the Senator from Alexandria that I believe that on a city council in a school board where they affect your pocketbook and they affect you at a local level we should be able to vote for every single one of those individuals as possible when it comes to statewide here we vote to represent our roughly 250,000 individuals and each one of us has a voice for that and matter

[02:17:50] president I go back to I believe we should be able to vote for as many of our leaders that affect our pocketbook as possible. And going back to the 731 would do that in the city of Virginia Beach. Thank you. Senator from Alexandria.

[02:18:07] Very briefly to the bill. Senator has the floor. I urge us to support the junior senator from Virginia Beach's bill. It makes no sense to me if you're going to have districts to have people from outside the district controlling the representation of another district. Otherwise why have districts? If they're represent a district be elected by the people in the district and it's clearly with the people in Virginia Beach and the government of Virginia Beach have asked for so I ask us to support them the chair recognizes the senator from

[02:18:42] Mecklenburg thank you madam president I have a question for the patron does the senator yield are you a matter president senator from Mecklenburg thank you madam chairman I'm sorry madam president did is this something that was brought by By the city requesting for the change, the charter change?

[02:19:06] The junior senator from Virginia Beach. Madam President, I would answer the senator from Muckenberg. Yes, this was asked by the, brought unanimously and voted on by the city of Virginia Beach. Okay, and so they went through all the proper channels that are normally required by the chamber.

[02:19:26] I'm sorry. I'm very confused today by the council to go through and ask for this, and it was unanimous. The senator from, junior senator from Virginia Beach. Thank you, Madam President. I would tell the senator from Mecklenburg, yes, it was unanimous, and they did go through all the process.

[02:19:44] In fact, this body has passed this charter change unanimously, I believe, two years ago. and so they did go all to proper channels the city has spent millions of dollars this has been a a highly contentious whether we have a 731 or a 10-1 system and that's why the people put it to a vote we put it to a referendum and again some folks as the senior senator from virginia beach they may very well like the 731 system but the majority of people in virginia beach over 10,000 people voted to support the 10-1 system by way of referendum and so the city all agree and we have

[02:20:20] republicans and democrats on our virginia city council everyone agreed whatever the people chose to vote for the results of the referendum they will abide by in fact that court case that the senior senator from virginia beach was speaking of the courts are actually waiting to see if the general assembly does their job and they were actually waiting for the results of the referendum

[02:20:42] And so I asked once again to divide what what what are the measures do we do we have to take that the city council the people the the study the referendum I don't know what else step you know we the city needs to ask and take to get this charter and change in place and we've done everything asked asked of us and here we are the chair recognizes the senior senator from Prince William thank you madam president parliamentary inquiry senator has the floor being this is special

[02:21:21] legislation, what is the vote count which is necessary to pass Senate Bill 681? The vote count will be 27. This is a bill that impacts the Charter. Thank you Madam President. Follow-up parliamentary inquiry. The Senator has the floor. Would the same rule also apply to all other ones that are special legislation also on today's docket? The chair says, would say yes. Thank you Madam President. Seeing no other senators who wish to speak the question is shall Senate bill 681 pass

[02:21:58] all in favor of the motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their votes the clerk will close the roll I was 27 noes 13 eyes 27 noes 13 Senate bill 681 passes returning to page 3 Senate bill 385 the chair

[02:22:35] recognizes the senator from Shenandoah thank you madam chair I moved the passage to the bill the Senate the senator has the floor thank you madam chair madam president I moved the passage of Senate bill 385 this is a bill for the town of front row to allow their town manager to live outside the city limits and i met with them and and the board voted unanimously and uh that's the bill i request your

[02:23:10] support the question is shall senate bill 385 pass all in favor of the motion will record their votes aye those opposed no are the senators president the senator from prince william apologize could the could we go at ease for just a moment please without objection the senate will be at ease

[02:23:32] the question the question is shall senate bill 385 pass all in favor of the motion will record

[02:24:24] their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their votes the clerk will close the role as 40 no zero eyes 40 no zero senate bill 385 passes regular calendar senate bills on third reading senate bill 297 a bill relating to use of photo speed monitoring devices repeal. The chair recognizes the senator from Lynchburg. Thank you madam president. I am going to

[02:25:03] ask to take this bill by for the day and as a further heads up to take it by not to do it on Friday to take it by till Monday I have been discussing this bill with stakeholders I think we might be making some progress so I would ask for the indulgence of the body to continue those negotiations over the weekend and talk to you all on Monday. Well I know that's gonna happen eventually. Thank you Madam President. Without objection the bill goes by. Senate Bill 306, a bill relating to use of violation monitoring systems to enforce traffic light

[02:25:41] signals and certain traffic control devices repeal. The chair recognizes the senator from Lynchburg. Thank you Madam President for the same reason I would ask that uh senate bill 306 go by for the day without objection senate bill 425 a bill relating to comprehensive plan environmental justice strategy the chair recognizes the senior senator from henrica thank you madam president i move the amendments we moved the amendments on second

[02:26:21] reading oh yeah we did madam president can this bill go by for a moment without objection senate bill 425 goes by temporarily senate bill 443 a bill relating to citing of battery energy storage projects commercial solar photovoltaic generation facilities permitted accessory use the chair recognizes the senior senator from prince william thank you madam president move the bill pass and

[02:26:56] speaking to the motion the senator has the floor thank you madam president senate bill 443 provides that battery energy storage to be accessories to approve solar sites so it's important we're looking at innovation in our energy grid many knew and saw that over this last ice storm that how important it is to have reliability adding battery energy storage to those solar existing approved solar facilities provides that by having energy storage it allows it to rapidly deploy when the grid is needed and ask for the bill's passage the question is

[02:27:31] Shall Senate Bill 443 pass? All in favor of the motion will record their vote. Aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[02:27:50] Ayes 26, noes 13. Ayes 26, noes 13. The bill passes. Senate Bill 462, a bill which provided a charter for the town of Louisa. The chair recognizes the senator from Prince Edward.

[02:28:06] Madam President. Senator from, senior senator from Prince William. Thank you. Could that go by temporarily? Without objection, Senate Bill 462 goes by temporarily. Senate Bill 581, a bill which provided a charter for the city of Fairfax relating to financial powers, city elections, council powers. The chair recognizes the senator from Central Fairfax. Thank you Madam President. The chair recognizes the senator from Hanover could that bill go by temporarily

[02:28:41] without objection Senate bill 581 goes by temporarily Senate bill 589 a bill relating to conservation of trees during land development process planning district 8 minimum tree canopy or cover percentages requirements after development the chair recognizes the senator from central Fairfax thank you madam president I move that the bill pass and speaking to that the senator has the floor thank you madam president senate bill 589 would allow all localities in planning district 8 to require in preservation or replacement of tree canopy at 10 years after development

[02:29:21] under the existing law vienna trees target must be projected at 20 years after the development under that same existing code some communities can require a tree canopy targeted project at 10 years after the development while others communities such as vienna are limited to the tree canopy targeted at 20 after the development because of how these sections are written fairfax county is allowed to have a tenure tree ordinance while vienna is left out and the surrounding cities and towns are at the tenure with that madam president i would hope

[02:29:58] that we can bring vienna back into the same mix as its neighboring uh towns and cities and that i ask that this bill pass the question is shall senate bill 589 pass all in favor of the motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll as 24

[02:30:30] no 16. ayes 24 no 16. senate bill 589 passes senate bill 648 a bill to suspend certain officers require a study adopt a remedial plan and establish meeting requirements of town councils in certain towns the chair recognizes the senior senator from Loudon thank you madam president president I move passage of the bill in speaking to that motion the senator has the floor Senate bill 648 is a bill that attempts to deal it has a sunset clause on it but it attempts to deal with some of the issues that many of you may have read about dealing with the town of

[02:31:08] Percival and the bill is very narrowly drafted so that it only applies to town of Percival but it tries to address those issues in three different ways and I'll tell madam president that this comes at great request from the members of Percival on a nonpartisan bipartisan basis they are quite desperate madam president to have someone come in and try to help them and this bill attempts to do that in three ways providing more government transparency more accountability for that town and I was disappointed in in committee to see all

[02:31:45] of my friends on the other side of the aisle vote against it because this is if you talk to the people of the town of Percival again very much not a partisan issue I have Republicans I have Democrats banging on my door on a routine basis begging for some help on this issue in fact one of the fellows who wrote in for help with the study that's in the bill I believe was part of actually two of the people who helped put together parts of this bill were political staff for Republicans and so I would ask that the members of the body vote

[02:32:24] together to support the people of Percival on a bipartisan basis and with that I move passage of the bill. The chair recognizes the senator from franklin county thank you madam president speak to the

bill the senator has the floor i'm president i was one on the other side that when i read this bill as a lawyer and an elected official that i had some consternation and and and so i went back and there's even articles today and i understand why the town is desperate some people there don't like their one of their leaders they think perhaps

[02:33:03] that leader has been engaged in conduct unbecoming of a town council member and they want to be able able to remove him while he's been charged with crime. I get that. But if you look at this, this is really a temporary thing. You go to the end under the enactment clause number two and it says this provision of this act shall expire on July 1st, 2028. So we're now, this is a temporary bill to address one problem. And if there was nothing in the code already, then I guess I would understand this. But the code already provides Commonwealth and the court can remove somebody or temporarily

[02:33:39] suspend their their obligations and duties on a town council in public office while the charges are pending we already have this and so the problems that i have with this bill is one are we going to do this every time this comes up not to mention that there are problems in this bill that make me concerned that go outside this if the council member is suspended removed the court the judiciary can appoint the temporary replacement yeah i don't think that's the way we should be

[02:34:15] doing things. Now we have again a law in place which allows and empowers the commonwealth attorney the judge to take this action in this town for this moment at this time for this reason but if we start creating and we start a precedent of temporary bills that solve one little problem in one little part of our district that only have a shelf life of a year six months two years we have now become not the general assembly but dollar general because we're doing the small

[02:34:47] things that don't last long. Is this microphone on? So, ladies and gentlemen, I urge you to vote against this legislation, not against the town that needs it, but because I think it sets bad precedent for us all. And this is not what we're here to do. We're here to create new bills that become law, that change and transform Virginia, make it bigger, make it better, make it greater, not solve minuscule problems and skirmishes that we're having within our districts. Otherwise, I dare say every single one of us has a town or a city like this and we can't

[02:35:25] solve their problems for them on the floor of this Senate in this manner and with this bill and for those reasons madam president I ask that we vote against respectfully Senate bill 648 the chair recognizes the senior senator from Prince William thank you madam president parliamentary inquiry the senator has the floor thank you madam president my reading of the bill indicates that this is a simple majority and want to confirm it is 21 votes that is needed to pass although it's a town being referenced it is not special

[02:35:58] legislation is that correct the senator is correct thank you madam president yes the senior senator from Loudoun is there anyone else in the queue to speak or can I close on my motion please go ahead senator has the floor thank you madam president I'll just say I know senator Stanley or the senator from Franklin County and I went back and forth about this bill for quite a while in committee and and I appreciate his questions and his inquiries you know as

[02:36:34] I told him then I agree with him that I think the code does provide for a prosecutor to to make a motion to suspend this member of the town council pending this jury trial that's pending for these six felony counts against this individual that include or are about his abuse of his office.

[02:36:59] I said about, Madam President, they're not allegedly about. The charges are about the abuse of his office. And I agree with him.

[02:37:15] The prosecutor handling the case disagrees. And so in the situation, again, to help these people, I think it is necessary. I will say, this individual was also decertified as a police officer in dependency of this and outside of his indictments.

[02:37:35] Madam President, I will just say that this is incredibly important for the people of this town. I don't think they see this bill as a dollar general fix. I think they take it very seriously so that they can continue to have transparency good governance and the people who look out for them who are supposed to look out for them and so I actually think although I put a sunset clause on it to make sure no one else was concerned about how it may impact them or no one else led anyone astray on how it might hurt their districts or their people and I as I said in committee I hope to never be here again on an issue I'm having to

[02:38:14] help the town in this particular way but but for them and and for me as someone who represents them and it's very very serious and I think we as a General Assembly have an obligation to look out and and take out for them there's a reason that the Dillon rule exists madam president and it's in situations like this that we have the ability and I think the responsibility to help take care of those people so I asked the members of this body to go with me to take care of those people even if you don't represent them thank you madam

[02:38:47] President. The question is, shall Senate Bill 648 pass? All in favor of the motion will record their votes, aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 30, noes 9, rule 36-1.

[02:39:14] Ayes 30, noes 9, rule 36-1. Senate Bill 648 passes. Returning to page 5. Madam President, Senator from Franklin County. I'm sorry, Hanover. Madam President, that's probably the most offensive thing anybody's ever said to me.

[02:39:31] My apologies, Senator. Madam President, I'd ask that the Senate be at recess for 10 minutes in the after. Can you call it? Go ahead and call it 425.

[02:39:48] Recess for 10 minutes and the Senate Republican Caucus meet downstairs upon recess. Without objection, the Senate will be at recess for 10 minutes.

[02:39:58] Go 425.

[02:57:26] the chair recognizes the senior senator from henrico thank you madam uh president madam president i move the bill pass and speaking to that the senator has the floor thank you madam president matter president sb 425 authorizes localities to incorporate community health and environmental justice strategies in their comprehensive planning process to raise positive community health outcomes by identifying the sighting of air water and other pollution sources within their jurisdiction I renew my motion to pass.

[02:58:04] Question is, shall Senate bill 425 pass? All in favor of the motion will record their votes aye, those opposed no, are the senators ready to vote? Have all the senators voted, do any senators desire to change their vote?

[02:58:20] The clerk will close the roll. Ayes 21, noes 19. Ayes 21, noes 19, Senate bill 425 passes. On page six, Senate Bill 462. The chair recognizes the senator from Prince Edward.

[02:58:39] Thank you, Madam President. I move the bill pass, speaking to the motion. The senator has the floor. Madam President, this is a charter change requested by the town of Louisa that repeals and replaces the 1972 charter. There's some modernization and some other things that the town has asked for.

[02:58:59] I renew my motion that the bill passes. The question is, shall Senate Bill 462 pass? All in favor of the motion will record their votes, aye. Those opposed, no. Are the senators ready to vote?

[02:59:16] Have all the senators voted? Do any senators desire to change their votes? The clerk will close the roll. Ayes 40, noes 0. Ayes 40, noes 0.

[02:59:33] Senate Bill 462 passes. Senate Bill 581. I'm going to read the bill. Senate Bill 581, a bill which provided a charter for the city of Fairfax relating to financial powers, city elections, council powers.

[03:00:00] The chair recognizes the senator from central Fairfax. Thank you, Madam President. I move that the bill pass. I'm speaking to that. The senator has the floor. Thank you, Madam President. Senate Bill 581 is a charter change requested by the city of Fairfax to make three simple corrections to align with the rest of the state.

[03:00:20] The first one is to remove the cap in the Charter on the transient occupancy tax allowing Fairfax City to have the same transit occupancy tax as the rest of Virginia The second part of this is to align them with the current law requiring Municipal elections to be held in the November general election and lastly they would like to strike the language from the Charter limiting compensation for members of boards and commissions to $50 per meeting, allowing the City Council to establish those amounts. With that, I move my motion that this bill pass.

[03:00:56] The question is, shall Senate Bill 581 pass? All in favor of the motion will record their votes. Aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their votes? The clerk will close the roll.

[03:01:17] ayes 24 no 16 ayes 24 no 16 the bill fails uncontested calendar Senate bills on second reading madam president the chair recognizes the senator from Hanover madam president having voted on the prevailing side whereby that last bill just failed to report a move to reconsider the question is shall the vote

[03:01:53] by which Senate bill 581 failed be reconsidered all in favor of the motion will record their vote aye those opposed no are the senators ready to vote do any senators desire to change their vote the clerk will close the roll as 40 no zero eyes 40 no zero the bill is back before us my president the chair recognizes the Senator from Franklin Franklin thank you or Dollar General thank you madam

[03:02:29] president I ask that Senate bill 581 go by for the day without objection Senate bill 581 goes by for the day and contested calendar Senate bills on the president so the chair recognizes the senator from senior senator from Fairfax I'm sorry Prince William thank you madam president I move to reconsider the vote with by which we passed Senate bill 462 the question is

[03:03:00] is, shall the vote by which we, the Senate passed Senate Bill 462 be reconsidered? All in favor of the motion will record their votes aye, those opposed no, are the Senators ready to vote?

[03:03:17] Have all the Senators voted? Do any Senators desire to change their votes? The clerk will close the roll. Ayes 40, noes 0. Ayes 40, noes 0, the vote by which Senate Bill 462 passed has been reconsidered.

[03:03:37] Madam President. The Chair recognizes the Senator from Franklin County. Madam President, I respectfully request that Senate Bill 462 go by for the day. Without objection, Senate Bill 462 goes by for the day.

[03:03:53] Uncontested calendars, Senate Bill's on second reading. Madam President. The Senator from Shenandoah. I request that we reconsider bill numbers, Senate Bill 681.

[03:04:10] 681. On page 20. as in voting on the prevailing side 681 page 4 madam president senator from

[03:04:38] orange use for five minutes the Senate will be at ease the Senate will come to

[03:14:21] order the Senate will come to order thank you madam president I would yield to my colleague from the valley the chair recognizes the senator from Shenandoah thank you madam president mad president I'd like to withdraw my motion without objection the chair recognizes the senior senator from Prince William thank you madam president reconsider the manner and vote

[03:14:52] which we passed by for the day Senate bills 462 and 581 the question is shall the Senate reconsider the votes by which Senate bill 462 and Senate bill 581 were passed by for the day. This will be a recorded vote. All in favor of the motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any

[03:15:25] senators desire to change their votes? The clerk will close the roll. Ayes 38, no 0. The motion to pass by for the day has been reconsidered. Senate Bill 462. The chair recognizes the senator from

[03:15:49] Prince. Senator from Eastern Fairfax. Can I go by temporarily please? Without objection. 462 goes by temporarily. Senate Bill 581. The chair recognizes the senator from Central Fairfax. Thank you Madam President. Madam President I move that this bill pass having previously explained that it is a charter bill required and asked by the city of Fairfax. Does the senator from Alexandria wish to speak?

[03:16:29] The question is, shall Senate Bill 581 pass? All in favor of the motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote?

[03:16:50] The clerk will close the roll. Ayes 33, no 7. Ayes 33, no 7. Senate Bill 581 passes. Senate Bill 462. The chair recognizes the senator from Prince Edward.

[03:17:08] Thank you, Madam President. I haven't already explained the bill. I move the bill to pass. The question is, shall Senate Bill 462 pass? All in favor of the motion will record their votes, aye. Those opposed, no. Are the Senators ready to vote? Have all the Senators voted?

[03:17:28] Do any Senators desire to change their votes? The Clerk will close the roll. Ayes 40, no 0. Ayes 40, no 0. Senate Bill 462 passes.

[03:17:44] uncontested calendar Senate bills on second reading the chair recognizes the senator from Eastern Fairfax madam president move that all the Senate bills on second reading and uncontested calendar on pages 7 through 13 Senate bill 140 through 734 be advanced then Grossman and third reading a block out the adoption amendments there to any senators are removed bill from the blocks will do so after the clerk has read the number of the bill the question is show all Senate bills on second reading on the uncontested calendar on pages 7 through 13 Senate bill 140 through Senate bill 734 be engrossed and

[03:18:21] advanced to their third reading in the block after the adoption of any amendments thereto that any senator desiring to remove a bill from the block will do so after the clerk has read the number of the bill all in favor of the motion will say aye any opposed no the ayes have it the motion is agreed to the consent the clerk will read the number of the bills Senate bill 140 reported from the committee on finance and appropriations with the substitute the chair recognizes the Senate the senior senator from Prince William madam

[03:18:59] president I move the substitute be agreed to the question is shall the substitute from the committee on finance and appropriations be agreed to all in favor of the motion will say aye any opposed no the eyes have it the substitute is agreed to. Senate bill 164 reported from the Committee on Commerce and Labor with a substitute. The chair recognizes the senior senator from Prince William. Thank you madam president with the substitute be agreed to. The question is shall the substitute from the Committee on Commerce and Labor be agreed to. All in favor of the motion will say aye. Any opposed no. The

[03:19:38] ayes have it. The substitute is agreed to. Senate bill 166 reported from the Committee on Commerce and Labor, Senate Bill 172, reported from the Committee on Commerce and Labor with a substitute. The chair recognizes the senator from Western Fairfax. Madam President, I move the committee substitute be agreed to. The question is, shall the substitute from the Committee on Commerce and Labor be agreed to? All in favor of the motion will say aye. Any opposed, no. The ayes have it. The substitute is agreed to. Senate Bill 246, reported from the committee on commerce and labor with a substitute the chair recognizes the

[03:20:18] senator from Eastern Fairfax and a president move the committee substitute be agreed to the question is shall the substitute from the committee on commerce and labor be agreed to all in favor of the motion will say aye any opposed no the ayes have it the substitute is agreed to Senate bill 358 reported from the committee on commerce and labor and we have one floor amendment the chair recognizes the senator from Hanover thank you madam president madam president i move we waive the reading of the floor amendment the question is shall the reading of the floor amendment be waived all in favor of the motion

[03:20:57] we'll say aye any opposed no the eyes have it the reading is waived madam madam president i move the floor amendment be agreed to and speaking to the motion the senator has the floor madam president thank the body when we were in committee a few days ago some of the continuing care organizations asked that there be some more specificity to what items could be excluded if the board went into executive session and one of them actually reached out to our office later and

[03:21:32] suggested why not use the same definitions as are currently in the homeowners association act so the floor amendment is taking the language from the homeowners association act applying it to the continued care board of directors meeting so if one of the individuals that is a member of the community is invited to the board meetings the board could still go into executive session and discuss personnel matters legal matters contracts the normal items that you would be able to discuss an executive session with that madam president uh renew the request that the

[03:22:07] the amendment be agreed to the question is shall the amendment be agreed to all in favor of the motion, we'll say aye. Any opposed, no. The amendment is agreed to. Senate Bill 403, reported from the Committee on Finance and Appropriations. Senate Bill 404, reported from the Committee on Finance and Appropriations. Senate Bill 479, reported from the Committee on Commerce and Labor with a

substitute. The chair recognizes a senior senator from Fairfax. Thank you, Madam President. I move that the substitute be agreed to. The question is, shall the substitute from

[03:22:47] the committee on commerce and labor be agreed to all in favor of the motion will say aye any opposed no the ayes have it the substitute is agreed to senate bill 520 reported from the committee on commerce and labor senate bill 546 reported from the committee on commerce and labor with amendments the chair recognizes the senator from colonial heights madam president i move the committee amendments be agreed to the question is shall the amendments from the committee on commerce and labor be agreed to all in favor we'll say aye any opposed no the

[03:23:22] eyes have it the committee amendments are agreed to Senate bill 591 reported from the committee on finance and appropriations with amendment the chair recognizes the senior senator from Prince William thank you madam president move that the amendments be agreed to the question is shall the amendments from the committee on finance and appropriations be agreed to all in favor of the motion we'll say aye. Any opposed no. The committee amendments are agreed to. Senate bill 593 reported from the committee on commerce and labor. Senate bill 622 reported from the committee on commerce and labor with a substitute. The

[03:24:01] chair recognizes the senior senator from Fairfax. Thank you madam president I move that the committee amendments be committee substitute be agreed to. The question is shall the substitute from the committee on commerce and labor be agreed to. All in favor of the motion, we'll say aye. Any opposed, no. The ayes have it. The committee substitute is agreed to. Senate Bill 626 reported from the Committee on Commerce and Labor. Senate Bill 630 reported from the Committee on Commerce and Labor. Senate Bill 642 reported from the Committee on Commerce and Labor with a substitute. The chair recognizes the senator from

[03:24:40] Washington. Thank you, Madam President. Could this come out of the block? Without objection. Senate Bill 642 is out of the block. Senate Bill 649 reported from the Committee on Finance Appropriations and we have a floor substitute. The chair recognizes the senator from Rockingham. Madam President, I move to waive the reading of floor substitute. The question is, shall the reading of the floor substitute be waived? All in favor of the motion will say aye. Any opposed, no. The reading is waived. Senator from Rockingham. Madam President, I move to the

[03:25:15] adoption of the floor substitute and speaking to that this is a bill dealing with with disclosures to people buying land that is in a land use taxation classification. There are instances in which people buy those properties and do something which takes it out of land use and they have back taxes that become due as a consequence of that this bill requires certain disclosures to purchasers and the Realtors Association and the

[03:25:54] settlement agents came to me with concerns about the bill as drafted this addresses those concerns apparently as drafted it conflicted with existing law in that it required certain disclosures by counties that are not permitted now Now it permits those disclosures and it also reduces the penalty, civil penalty, for settlement agents who knowingly violate this provision and fail to provide that notice.

[03:26:25] This went through finance. It had no fiscal impact before. I submitted the substitute to finance. They agree it also has no fiscal impact. So I would respectfully ask that the floor substitute be adopted. The question is, shall the floor substitute be agreed to?

[03:26:45] All in favor of the motion will say aye. Any opposed, no. The floor substitute is agreed to. Senate Bill 734 reported from the Committee on Commerce and Labor. The question is, shall the Senate bills now be engrossed in advance to their third reading, that is, all bills except for Senate Bill 642 on page 13?

[03:27:15] All in favor of the motion will say aye. Any opposed, no. The ayes have it. The bills are engrossed and advanced to their third reading. On page 13, Senate Bill 642. The chair recognizes the senator from Washington.

[03:27:33] Thank you, Madam President. I move the committee substitute be agreed to. The question is, shall the committee substitute from the Committee on Commerce and Labor be agreed to? all in favor of the motion will say aye any opposed no the ayes have it the committee's substitute is agreed to thank you madam president i now move the bill be re-referred to the committee on finance and appropriations the question is shall senate bill 642 now be re-referred to the committee the committee on finance and appropriations all in favor of the motion will say aye any

[03:28:12] Any opposed, no. The ayes have it. The bill is re-referred to the Committee on Finance and Appropriations. Regular calendar Senate bills on second reading. Senate Bill 347, a bill relating to local regulation of solar facilities, special exceptions, reported from the Committee on Local Government with amendments.

[03:28:35] The chair recognizes the senator from Western Henrico. Thank you, Madam President. Madam President, I move the committee amendments be agreed to. The question is, shall the amendments from the Committee on Local Government be agreed to? All in favor of the motion will say aye.

[03:28:52] Any opposed, no. The ayes have it. The committee amendments are agreed to. Thank you, Madam President. Madam President, I move the bill be engrossed and advanced to its third reading. The question is, shall Senate Bill 347 now be engrossed and advanced to its third reading?

[03:29:07] All in favor of the motion will say aye. Aye. Any opposed, no. The bill is engrossed and advanced. Senate Bill 496, a bill relating to secure storage of handguns, unattended locked vehicles penalty reported from the Committee for Courts of Justice with the substitute and there are five floor amendments.

[03:29:27] The chair recognizes the senior senator from Fairfax. Thank you, Madam President. Could that bill go by for the day? Without objection, Senate Bill 496 goes by for the day. Senate Bill 57, a bill to require the Commonwealth's participation in the electronic registration information center Eric reported from the committee on finance and appropriations the chair recognizes the senator from Western Henrico thank you madam president madam president I move the bill be engrossed in advance to its third reading the question is shall Senate bill 57 now be engrossed in advance to his third reading all in favor of the motion will say aye any

[03:30:07] opposed no the bill is engrossed and advanced Senate bill 226 a bill relating to competitive bidding for compost and other products containing organic soil amendments. Waste disposal infrastructure civil penalty reported from the Committee on Finance and Appropriations with the substitute. The chair recognizes the senator from Eastern Fairfax. Move the committee substitute. The question is shall the substitute from the Committee on Finance and Appropriations be agreed to? All in

favor of the motion will say aye. Any opposed, no. The ayes have it. The substitute is agreed to. Senator from Eastern Fairfax.

[03:30:45] Move the bill be engrossed and advanced to its third reading. The question is, shall Senate Bill 226 now be engrossed and advanced to its third reading? All in favor of the motion will say aye. Aye. Any opposed, no. The ayes have it. The bill is engrossed and advanced.

[03:31:02] Senate Bill 400, a bill relating to admissions tax in counties, retail sales and use tax dedicated to promotion of tourism, Reported from the committee on finance and appropriations the chair calls the chair recognizes the senator from york Madam president. I move that the bill be engrossed Engrossed in advance to his third reading the question is shall Senate bill 400 now be engrossed in advance to his third reading all in favor of the motion We'll say aye any opposed. No the bill is engrossed and advanced Senate bill 612 a bill relating to motion picture production income tax credit

[03:31:40] sales and use tax media related exemptions reported from the committee on finance and appropriations with a substitute the chair recognizes the senator from washington bye for just temporarily without objection senate bill 612 goes by temporarily senate bill 652 a bill to direct the state corporation commission's bureau of insurance to submit a report on data collected from property and casualty insurance providers report reported from the committee on commerce and labor with the substitute the chair recognizes the junior senator from loudon thank you madam

[03:32:19] president i move that the committee substitute be agreed to and be engrossed and advanced to its third reading those are two separate motions senator so we will do the first the question is shall the substitute from the committee on commerce and labor be agreed to all in favor of the motion will say aye any opposed no the ayes have it the substitute is agreed to senator the junior senator from loudon thank you madam president i know um move that the substitute be agreed well i don't move that the bill be engrossed and advanced to its third

[03:32:54] reading thank you the question is shall senate bill 652 now be engrossed and advanced to his third reading all in favor of the motion will say aye any opposed no the ayes have it the bill is now engrossed and advanced. Senate Bill 693, a bill relating to motor vehicle insurance, use of consumer credit information to establish rates prohibited, unfair discrimination reported from the Committee on Commerce and Labor with a substitute. The chair recognizes the senator from Isle of Wight. Thank you, Madam President. I move the committee substitute to be agreed to.

[03:33:31] The question is, shall the committee substitute from the Committee on Commerce and Labor be agreed to. All in favor of the motion will say aye. Any opposed, no. The ayes have it. The substitute is agreed to. Senator from Isle of Wight. Thank you, Madam President. I would move the bill be engrossed and pass to its third reading. The question is, shall Senate Bill 693 now be engrossed in advance to its third reading? All in favor of the motion will say aye. Any opposed, no. The bill is engrossed and advanced. Returning to page 16, Senate Bill 612. The chair recognizes the senator

[03:34:06] from washington uh thank you madam president can we move that we adopt the committee substitute the question is shall the substitute from the committee on finance and appropriations be agreed to all in favor of the motion will say aye any opposed no the ayes have it the committee's substitute is agreed to senator from washington thank you madam president uh can we engross in advances to its third constitutional reading the question is shall senate bill 612 now be engrossed and advanced to its third reading. All in favor of the motion will say aye. Any opposed, no. The

[03:34:42] ayes have it. The bill is engrossed and advanced. Uncontested calendar, Senate bills on first reading. The chair recognizes the senator from Eastern Fairfax. Thank you, Madam President.

[03:34:59] Still haven't moved yet. Madam President, move all the Senate bills on the first reading on the the uncontested regular calendars, pages 17 through 23, Senate Bills 47 to 582, that the rules be suspended and the first constitutional reading of the titles be dispensed with. The question is, shall the rules be suspended in the first constitutional reading of the titles of the Senate bills on the uncontested and regular calendars, pages 17 through 23, Senate Bill 47 through Senate Bill 582, be dispensed with? All in favor of the motion will record their votes,

[03:35:33] aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their votes? The clerk will close the roll. Ayes 40, no zero. Ayes 40, no zero. The reading of the titles is dispensed with. The chair recognizes the senator from Eastern Fairfax. Thank you, Madam President. I move that all those bills go by for the day. The question is, shall the Senate bills on the uncontested and regular calendars now on their second reading go by for the day?

[03:36:10] All in favor of the motion, we'll say aye. Any opposed, no. The ayes have it. The bills will go by for the day. Regular calendar, Senate Joint Resolutions on first reading. Senate Joint Resolution 60, confirming appointments by the governor of certain persons communicated to the General Assembly, January 21st, 2026.

[03:36:32] Senate Joint Resolution 61, confirming appointments by the governor of certain persons communicated to the General Assembly, January 23rd, 2026. memorial resolutions the chair recognizes the senator from Eastern Fairfax and a present move of the memorial resolutions on pages 24 through hjr 57 through sorry on page 24 hjr 57 through SR 28 be considered a block in usual manner waving there is result we mean read waiving the reading of the resolution thereof with the understanding a senator's hiring a resolution be removed the block will do so after the clerk has read the number

[03:37:10] of the resolution. The question is, shall the memorial resolutions on page 24, HJR 57 through SR 28, now be considered in the block in the usual manner, waiving the reading of the resolutions thereof, with the understanding that any senator desiring to remove a resolution from the block will do so after the clerk has read the title of the resolution. All in favor of the motion will say aye. Any opposed, no. The ayes have it. The motion is agreed to. The resolutions are now before us in

[03:37:47] the block. The clerk will read the titles of the memorial resolution. House Joint Resolution 57, celebrating the life of Earl Cole. House Joint Resolution 58, celebrating the life of Jeremy Lewis Hall. House Joint Resolution 62, celebrating the life of Emmett Pierce. House Joint Resolution 88. Celebrating the life of the Reverend Dr. Sylvester L. Turner. Senate Joint Resolution 64.

[03:38:20] Celebrating the life of Joseph Franklin Veyer. Senate Resolution 21. Celebrating the life of Lucille Hoback Boggess. Senate Resolution 27. Celebrating the life of the Reverend Dr. Joe Billy Fleming. Senate Resolution 28. Celebrating the life of Claude Thomas Clark Sr.

[03:38:42] the resolutions will be agreed to in the usual manner all those in favor of agreeing to the memorial resolutions please rise the resolutions are agreed to commending resolutions the chair recognizes the senator from Eastern Fairfax madam president move the commending resolutions on pages 25 through 28 HGR 54 through SR 26 be considered in a block by a voice vote waiving the reading of the resolutions with the understanding a senator's iron move

[03:39:21] resolution from the block will do so after the clerk has read the number the resolution. The question is, shall the commending resolutions on pages 25 through 28, HJR 54 through SR 26, be considered in the block by voice vote, waiving the reading of the resolutions with the understanding that any senator desiring to remove a resolution from the block will do so after the clerk has read the number of the resolution. All in favor of the motion will say aye. Any opposed no the ayes have it the motion is agreed to the resolutions are before us in the block

[03:39:59] the clerk will read the number of the resolutions house joint resolutions 54 59 60 61 63 64 65 66 67

[03:40:16] 68 69 70 71 72 75 senate joint resolutions 55 57 58 62 63 senate resolutions 18 19 20 22 23 24 25 26. The question is, shall the resolutions be agreed to? All in favor of agreeing to the

[03:40:52] resolutions will say aye. Any opposed, no. The ayes have it. The resolutions are agreed to. The chair recognizes the senator from Eastern Fairfax.

[03:41:15] Madam President, I move that we waive the reading of the communication from the house. The question is, shall the communications from the house now be waived? All in favor of the motion will say aye my apologies it's a recorded vote all in favor of the motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators

[03:41:42] desire to change their vote the clerk will close the roll as 21 no 17. ayes 21 no 17. the motion has failed. The clerk will read the house communication. In the House of Delegates, January 29, 2026, the House of Delegates has passed the following House bills: House Bill 612, a bill to provide for the submission to the voters of a proposed amendment to Section 15-A

[03:42:20] of Article 1 of the Constitution of Virginia relating to marriage between two adult persons, repeal of same-sex marriage prohibition house bill 781 a bill to provide for the submission to the voters of a proposed amendment to the constitution of virginia by adding an article 1 a section number 11-a relating to fundamental right to reproductive freedom house bill 963 a bill to provide for the submission to the voters of a proposed amendment to section 1 of article 2 of the constitution of virginia relating to qualifications of voters right to vote persons

[03:42:59] not entitled to vote in which action it requests the concurrence of the senate g paul nardo clerk of the house of delegates the chair recognizes the senator from eastern fairfax uh inquiry the clerk does that complete today's calendar yes sir is there is there any other business to come before the senate the chair recognizes the senior senator from virginia beach thank you madam president i

[03:43:37] - I rise for a point of personal privilege. - The Senator has the floor. - Madam President, today marks the one year since the tragic crash of American Airlines flight 5342 near Ronald Reagan National Airport.

[03:43:53] We pause to remember the lives lost, to honor their memory, to hold close their families and loved ones who continue to carry this profound grief. This tragedy was not only felt across the Commonwealth of Virginia, but across the country and across the world.

[03:44:10] reminding us how deeply connected we are in a moment of loss. A year has passed, but the sorrow remains, as does our commitment to remembrance, compassion, and the respect for those taken

far too soon. May we reflect quietly for a moment today, carrying the memory forward with dignity and care.

[03:44:31] Thank you, Madam President. I thank the Senator. The Senator from Northern Fairfax. Thank you, Madam President.

[03:44:48] I rise for a brief point of personal privilege. The senator has the floor. Thank you, Madam President. Earlier in the week, I mentioned that the Walk for Peace, the Buddhist monks who are traveling across the country would be coming on Sunday. I just wanted to remind the body, you know, they started their walk on October 26, 2025.

[03:45:12] There are about two dozen monks, Buddhist monks from Texas. They have embarked on a journey by foot, 2,300 miles, spiritual and patriotic walk from Fort Worth to Washington, D.C. They are here to try to remind us that we are better together than we are being angry with one another.

[03:45:38] And I think that we could all use that message today after being angry with one another over town charters. So I just wanted to thank everyone who signed on to the resolution that we just passed. And an update is that they just let me know that they'll be coming on Monday to Richmond, not on Tuesday.

[03:46:00] So everybody, hopefully, will get a chance to see them. There could potentially be 5,000 people here around to greet the venerable monks. And we're just so excited to see them. And thank you for your time.

[03:46:16] I thank the senator and I remind all senators that during our points of personal privilege it is the decorum of the Senate that we remain seated and listen with respect to our colleagues thank you the chair recognizes the senator from Isle of Wight thank you madam president I rise for an announcement the senator has the floor thank you madam president as co-chair of the Legislative Rural Caucus with my fellow colleague down the hall delegate We would like to announce the second meeting of the Rural Caucus during this session.

[03:46:51] It'll occur at 5:00 p.m. today on the 10th floor if anyone would like to join us. And today's guest speakers will be Speaker Don Scott, Marvin Figueroa, our Secretary of Health and Human Resources, and Dr. Jeffrey Smith, our Secretary of Education. If anyone would like to join us and learn more about Rural, we'd love to have you there.

[03:47:07] Thank you, Madam President. I thank the senator. Seeing no further senators wishing to speak, the clerk will report any announcements on the desk. Today, Thursday, January 29th, 2026, Committee on Transportation will meet 15 minutes after adjournment in Senate Room B, GAB. The Education and Health Subcommittee on Public Education will meet 30 minutes after adjournment in Senate Room C, GAB. The Finance and Appropriations Subcommittee on Education has been canceled and will not meet. This is a change. The Finance

[03:47:46] and appropriations subcommittee on education has been canceled the finance and appropriations subcommittee on resources will meet at 4 o'clock pm in senate finance and appropriations room 13th floor gab friday january 30th 2026 the committee on rehabilitation and social services will meet at 8 o'clock a.m in senate room a gab the finance and appropriations subcommittee on capital outlay and transportation will meet at 8 o'clock a.m. in the Senate Finance and Appropriations Room,

[03:48:22] 13th Floor, GAB. The Education and Health Subcommittee on Health Professions will meet at 8:30 a.m. in Senate Room C, GAB. The Committee on Rules will meet at 10 o'clock a.m. in Senate Room C, GAB. The Democratic Caucus will meet 45 minutes before session in Senate Room 1 of the Capitol. The Republican Caucus will meet 30 minutes before session and senate room two of the capitol the chair recognizes the senator from portsmouth thank you madam president madam president i move that the senate do now adjourn until 11 a.m tomorrow

[03:49:01] the question is shall the senate now adjourn until 11 11 a.m tomorrow all in favor of the motion will say aye any opposed no the ayes have it the motion is agreed to the senate stands adjourned until

[03:49:18] 11 a.m. tomorrow be sure to stay connected with live sessions catch up on past meetings and explore

[03:50:22] our full archives anytime on the senate of virginia's youtube channel this is the senate of

[03:51:29] virginia richmond virginia senate chamber

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